

TENTATIVE RULINGS

FOR: September 24, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. A Zoom

Join by Video

<https://www.zoomgov.com/j/1601453113?pwd=XpBlla8kBiCpGb0ukQyabkmCrgDdWM.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))

**** All matters originally set in Dept. B will be heard in Dept. A ****

PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Conservatorship of Pauline Chen

23PR000127

- [1] REVIEW HEARING
- [2] SECOND ACCOUNT AND REPORT OF CONSERVATOR; PETITION FOR ALLOWANCE OF FEES TO CONSERVATOR OF PERSON AND ESTATE AND ATTORNEY FOR CONSERVATOR

TENTATIVE RULING: The Petition is GRANTED, including fees as prayed. After a review of the matter, the Court finds the Conservator is acting in the best interest of the Conservatee. Thus, the matter is set for a Review – Biennial and for an Accounting on

September 26, 2028, at 8:30 a.m. in Dept. B. All accounting documents must be filed at least 30 days prior to the hearing. The court investigator shall prepare a biennial investigator report for the next hearing date. The clerk is directed to send notice to the parties.

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Conservatorship of James Michael Feeney

25PR000173

[1] FIRST ACCOUNT AND REPORT OF CONSERVATORS OF PERSON AND ESTATE

[2] REVIEW HEARING

TENTATIVE RULING: The Petition is GRANTED, including fees as prayed. After a review of the matter, the Court finds the Conservators are acting in the best interest of the Conservatee. Thus, the matter is set for a Review – Biennial and for an Accounting in two years from the original date of the 2026 review, on August 29, 2028, at 8:30 a.m. in Dept. B. All accounting documents must be filed at least 30 days prior to the hearing. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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Conservatorship of Knutson, Julie Mae

26-15803

REVIEW HEARING - COURT ORDERED

TENTATIVE RULING: The Court has been informed that the Conservatee is deceased. The Conservatorship is therefore terminated.

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Conservatorship of Ramirez, Daniel N.

26-19599

REVIEW HEARING - COURT ORDERED

TENTATIVE RULING: After a review of the matter, the Court finds the Co-Conservators are acting in the best interest of the Conservatee. Thus, the matter is set for a Review – Biennial hearing in two years, on September 26, 2028, at 8:30 a.m. in Dept. B. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

The Court appoints the Public Defendant to represent the Conservatee. The Clerk is directed to provide a copy of this order and notice of the 2028 hearing to the parties, including the Public Defender.

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**Jeff Johnson et al v. Stephen Favis, individually, as Trustee
of The McKenzie Madison Trust, and as purported Co-Trustee
of the Mariano Favis Revocable Living Trust et al**

26CV001697

DETERMINATION HEARING REGARDING COMPLEX CASE DESIGNATION

APPEARANCE REQUIRED

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Estate of Gavin Charles Scholle

26PR000038

AMENDED PETITION FOR PROBATE OF WILL AND FOR LETTERS TESTAMENTARY
AND AUTHORIZATION TO ADMINISTER UNDER THE INDEPENDENT
ADMINISTRATION OF ESTATES ACT

TENTATIVE RULING: There remains no POP in the Court's file. If one is filed prior
to the hearing, the Petition will be GRANTED, Richard S. Thomas will be appointed as probate
referee, and the matter will be set for a Status Hearing Re: Final Distribution on September 23,
2027, at 8:30 a.m. in Dept. A.

If no POP is filed, the Petition will be DENIED WITHOUT PREJUDICE.

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Estate of Jeanne Marie Agapoff

26PR000177

SPOUSAL PROPERTY PETITION

TENTATIVE RULING: The Petition is GRANTED.

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In the Matter of Louise Saylor 2019 Revocable Trust

26PR000191

VERIFIED PETITION AND COMPLAINT FOR: (1) ORDER FOR RETURN OF PROPERTY;
(2) UNDUE INFLUENCE; (3) CANCELLATION OF INSTRUMENT; (4) FINANCIAL
ELDER ABUSE BASED ON UNDUE INFLUENCE; (5) CONVERSION

TENTATIVE RULING: The matter is CONTINUED to October 8, 2026, at 8:30 a.m. in Dept.
B.

REVIEW HEARING COURT ORDER

TENTATIVE RULING: The Court is apprised that both Conservators (the parents of Conservatee Jaime Esguerra) have passed away and that Conservatee's sister has since filed a Petition to be appointed Conservator in Contra Costa County. The Court is informed that the Conservatorship was established on September 14, 2026, however, there remains no copy of Contra Costa County Court's September 14, 2026, order appointing the Conservatee's sister Conservator (the "9/14 Order"), in this Court's file. If a copy of the 9/14 Order is filed prior to the hearing, the Court will terminate the Conservatorship. If a copy of the 9/14 Order is not filed before the hearing, the matter will be CONTINUED to October 22, 2026, at 8:30 a.m. in Dept. A, pending approval of Conservatorship Petition in Contra Costa County. The Clerk is directed to send notice to the parties.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Blue Sky Utility, LLC, et al v. Barend Venter

24CV002242

CONFERENCE CASE MANAGEMENT

The Case Management Conference in this matter is continued to December 16, 2026, at 8:30 am in Department A.

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Barend Venter et al v. Ofer Yannay et al

24CV000715

CONFERENCE CASE MANAGEMENT

In light of the Court's concurrent ruling on the Demurrer to the Second Cause of Action in the Second Amended Complaint, the Case Management Conference is continued to December 16, 2026, at 8:30 am in Department A.

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Barend Venter et al v. Ofer Yannay et al

24CV000715

DEFENDANTS OFER YANNAY, ALLION RAVEH, NADAV TENNE, NOAM FISHER, SHAHAR GERSHON, AND TOMER DROVAL'S DEMURRER TO PLAINTIFF'S AMENDED SECOND CAUSE OF ACTION AND MEMORANDUM OF POINTS AND AUTHORITIES

TENTATIVE RULING: The demurrer is SUSTAINED. Plaintiffs are granted 10 calendar days' leave, from entry of the instant order, to attempt to further amend the operative complaint to state good claims for breach of fiduciary duty against the moving defendants.

Defendants Ofer Yannay, Allon Raveh, Nadav Tenne, Noam Fisher, Shahar Gershon, and Tomer Droval (collectively, Individual Defendants) demur, pursuant to Code of Civil Procedure section 430.10, subdivisions (e) and (f), to the Second Cause of Action of the Second Amended Complaint (SAC) of Plaintiffs Barend Venter and Venter Ventures LLC (Plaintiffs) on grounds that the SAC fails to allege facts sufficient to state the cause of action and that the cause of action is uncertain.

On June 6, 2025, the Individual Defendants demurred to the same cause of action as it appeared in Plaintiffs' First Amended Complaint (FAC). The Court sustained the demurrer pursuant to its August 8, 2025, Order After Hearing (FAC Demurrer Order) and granted Plaintiffs leave to amend.

A. REQUEST FOR JUDICIAL NOTICE

The Individual Defendants' Request for Judicial Notice (RJN) is GRANTED IN PART as to the Operating Agreements attached as Exhibits 1 and 2 to the Declaration of Yehuda Goor (Goor Decl.).

The Court acknowledges that the Operating Agreements are not only alleged in the SAC, but also relied on by Plaintiffs in asserting their claim for declaratory relief. (See SAC at ¶¶ 29, 118-119, 124, and 127-128.) The Court further acknowledges the authority, cited by the Individual Defendants, that supports their assertion that "[d]ocuments that are referenced in the SAC, relied on by Plaintiffs, or which govern the Plaintiffs' claims are judicially noticeable." (See RJN at 2:3-11.) Thus, the Court takes judicial notice of *the existence* of the Operating Agreements.

However, the Court concludes that it is prohibited from taking judicial notice of the meaning of the Operating Agreements, or either of them.

"A matter ordinarily is subject to judicial notice only if the matter is reasonably beyond dispute. [Citation.] Although the existence of a document may be judicially noticeable, . . . its proper interpretation [is] not subject to judicial notice if . . . reasonably disputable. [Citation.] . . . 'In ruling on a demurrer, a court may consider facts of which it has taken judicial notice. [Citation.] This includes the existence of a document. When judicial notice is taken of a document, however, the truthfulness and proper interpretation of the document are disputable. [Citation.]" [Citation.]"

. . .

The proper interpretation of a contract is disputable if the contract is susceptible of more than one reasonable interpretation, that is, if the contract is ambiguous. An ambiguity may appear on the face of a contract, or extrinsic evidence may reveal a latent ambiguity. [Citation.] A court determining whether a contract is ambiguous must first consider extrinsic evidence offered to prove the parties' mutual intention. If the court determines that the contract is reasonably susceptible of an interpretation supported by extrinsic evidence,

the court must admit that evidence for purposes of interpreting the contract. [Citation.] A court cannot determine based on only the four corners of a document, without provisionally considering any extrinsic evidence offered by the parties, that the meaning of the document is clear and unambiguous. [Citation.] Instead, a court must provisionally consider extrinsic evidence offered by the parties in the manner we have stated.

For a court to take judicial notice of the meaning of a document submitted by a demurring party based on the document alone, without allowing the parties an opportunity to present extrinsic evidence of the meaning of the document, would be improper. A court ruling on a demurrer therefore cannot take judicial notice of the proper interpretation of a document submitted in support of the demurrer. (*Fremont Indemnity Co. v. Fremont Gen. Corp.* (2007) 148 Cal.App.4th 97, 113-115 (*Fremont*).)

The holding in *Scott v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 743, (*Scott*), cited by the Individual Defendants, accords with the foregoing. “[W]hether [a] fact derives from the legal effect of a document or from a statement within the document, the fact may be judicially noticed where, as here, *the fact is not reasonably subject to dispute.*” (*Id.* at 754. Italics added.)

One of the two arguments advanced by the Individual Defendants in support of the demurrer relies on the meaning – or legal effect – of a provision set forth in Section 8.1(h) of the Operating Agreements; “the Nofar Managers shall not be required to prefer the business or properties of the Company over the business or properties of any other entity in which any such Manager or any of his or her Affiliates may have an interest.” (See Support Memo at 2:16-3:4, quoting Goor Decl., Exhs. 1-2, § 8.1(h).)

The provision’s meaning is not, on its face, clear and unambiguous. Moreover, significant portions of the parties’ respective briefs are dedicated to arguing the meaning of the provision. (See, *e.g.*, Support Memo at 5:10-9:26, and Opposition at 1:10-6:20.) These arguments demonstrate that there is a dispute regarding the provision’s proper interpretation. As such, the Court is not permitted to take judicial notice of the provision’s meaning for purposes of analyzing the instant demurrer. (See *Fremont, supra*, 148 Cal.App.4th at 114-115.)

While the Court takes judicial notice of its files in this action, it is not clear, in light of the Court’s ruling on the request to take judicial notice of the Operating Agreements, above, that any of the matters in the file, identified in the Request for Judicial Notice, are relevant to the Court’s analysis of the instant demurrer. (See *In re Tobacco Cases, II*, JCCP 4042 (2004) 123 Cal.App.4th 617, 626 [“‘Although a court may take judicial notice of a variety of matters [citation], only relevant material may be noticed’”].)

B. BACKGROUND

A complaint must contain “facts constituting the cause of action.” (Code Civ. Proc., § 425.10, subd. (a)(1).) “The party against whom a complaint or cross-complaint has been filed

may object, by demurrer . . . to the pleading on . . . grounds [that] . . . (e) The pleading does not state facts sufficient to constitute a cause of action . . . [and/or] . . . (f) The pleading is uncertain.” (Code Civ. Proc., § 430.10.)

A demurrer on grounds that a plaintiff has failed to state a claim is treated as “admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Such demurrer ““does not admit . . . facts impossible in law, or allegations contrary to facts of which a court may take judicial knowledge.’ [Citation.]” (*Kenneth Mebane Ranches v. Superior Court* (1992) 10 Cal.App.4th 276, 291-292.) The Court must “construe the allegations of a complaint liberally in favor of the pleader.” (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.) Court must also accept as true facts that may be inferred from those expressly alleged. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) The Court may also consider as grounds for a demurrer any matter that is judicially noticeable under Evidence Code sections 451 or 452. (Code. Civ. Proc., § 430.30, subd. (a).) Because “[a] demurrer tests only the legal sufficiency of the pleading...the question of plaintiff’s ability to prove the[] allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Comm. on Children’s Television, Inc. v. Gen. Foods Corp.* (1983) 35 Cal.3d 197, 213-14.)

A demurrer for uncertainty is disfavored and strictly construed; even where a complaint is in some respects uncertain ambiguities can be clarified under modern discovery procedures. (See *Lickiss v. Financial Industry Regulatory Authority* (2012) 208 Cal.App.4th 1125, 1135 (*Lickiss*) [held: a demurrer for uncertainty is disfavored and strictly construed; even where a complaint is in some respects uncertain, ambiguities can be clarified under modern discovery procedures])

C. ANALYSIS

1. The Court Does Not Find that the Second Cause of Action Fails as a Matter of Law

The Individual Defendants first argue that the Second Cause of Action fails as a matter of law “because Plaintiffs’ allegations of breach of fiduciary duty are the exact conduct that the Operating Agreements carved out from the scope of the Individual Defendants’ fiduciary duties as permitted by California law.” (Support Memo at 5:13-15.)

This argument, however, rests on the Individual Defendants’ interpretation of section 8.1(h) of the Operating Agreements. As discussed above, the Court cannot take judicial notice of the Individual Defendants’ proffered interpretation for purposes of demurrer. The Court cannot, therefore, conclude that the provision permits the conduct alleged to constitute a breach of fiduciary duty.

2. Plaintiffs Fail to Allege Facts Sufficient to State a Claim for Breach of Fiduciary Duty

The Individual Defendants next argue that “the SAC’s allegations remain conclusory, and therefore cannot overcome the business judgment rule. The SAC suffers from the same

deficiencies identified by the Court in the Demurrer Order regarding the prior complaint, and Plaintiffs still fail to sufficiently allege an exception to the business judgment rule.” (Support Memo at 10:2-7.)

The Court incorporates, herein, the discussion of the law relating to the pleading requirements for a claim of breach of fiduciary duty in light of the business judgment rule, set forth in its FAC Demurrer Order. (See *id.* at § C, pp. 3-5.) As noted there, “a plaintiff must allege sufficient facts to establish . . . exceptions [to the presumption that directors’ decisions are made in good faith and are based upon sound and informed business judgment]. To do so, more is needed than ‘conclusory allegations of improper motives and conflict of interest. . . . In most cases, ‘the presumption created by the business judgment rule can be rebutted only by affirmative allegations of facts which, if proven, would establish fraud, bad faith, overreaching or an unreasonable failure to investigate material facts. [Citation.] Interference with the discretion of directors is not warranted in doubtful cases.’ [Citation.] (*Berg & Berg Enterprises, LLC v. Boyle* (2009) 178 Cal.App.4th 1020, 1045-1046 (*Berg & Berg*)).”

The Individual Defendants assert that “[i]n response to the defects identified in the Court’s Demurrer Order, Plaintiffs simply added the same boilerplate language to each of paragraphs 111(e)-(k) (now numbered as 113(e)-(k)): ‘This was a decision based on Nofar’s interest and not Blue Sky’s and did not involve any exercise of business judgment relative to Blue Sky’s interests.’ (See SAC Ff 113(e)-(k)).” (Support Memo at 12:1-4.)

The Court finds that these are “conclusory allegations of improper motives and conflict of interest” and, pursuant to the holding in *Berg & Berg*, insufficient to cure the deficiencies in the Second Cause of Action previously identified by the Court.

Plaintiffs assert that “[t]he Second Amended Complaint . . . allege [*sic*] significant conflicts of interest and specific acts which are breaches of duty which were engaged in purposefully and without any regard for business judgment.” (Opposition at 8:5-7.) In citing to such allegations, Plaintiffs state only that “[t]hese allegations begin at paragraph 55 of the Second Amended Complaint and continue up until the First Cause of Action.” (*Id.* at 8:18-19.)

The only amendments (to the FAC) in these sections of the SAC that the Court can identify consist of the scattered use of the phrase “through the individually named defendants.” (Compare FAC at ¶ 53 with SAC at ¶ 55.) The inclusion of this phrase to describe various actions by Nofar does not constitute “affirmative allegations of facts which, if proven, would establish fraud, bad faith, overreaching or an unreasonable failure to investigate material facts.” (*Berg & Berg, supra*, 178 Cal.App.4th at 1046.) As the Court previously noted, “[t]he bulk of these paragraphs allege actions of Nofar, not the Board as a whole or its individual directors.” (FAC Demurrer Order at p. 5.) The addition of the phrase “through the individually named defendants” does not compel a different conclusion.

Based on the foregoing, the Demurrer is SUSTAINED.

3. Leave to Amend

Generally, it is an abuse of discretion for a court to deny leave to amend where there is any reasonable possibility that a plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) However, the pleading party bears the burden of showing such reasonable possibility. (*Ibid.*)

Plaintiffs do not, through the Opposition, request leave to amend, let alone show how they may do so. However, the Court is aware – from Plaintiffs’ September 9, 2026, ex parte application – that it has prepared a Third Amended Complaint which they believe states a good cause of action against the Individual Defendants. For that reason, the Court grants Plaintiffs leave to amend. Plaintiffs should be mindful that the Court will be disinclined to grant leave to amend for a fourth time in the event their Third Amended Complaint does not state a good cause of action as to the Individual Defendants.

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Massimo Falsini et al v. Wyman Property Management et al

24CV001280

[1] PLAINTIFF MASSIMO FALSINI’S MOTION TO COMPEL CALISTOGA THIRD STREET INVESTORS RESPONSES TO **REQUEST FOR PRODUCTION OF DOCUMENTS SET TWO**, AND FOR MONETARY SANCTIONS AGAINST DEFENDANT **CALISTOGA THIRD STREET INVESTORS** AND ITS COUNSEL
[Filed 8/26/26]

TENTATIVE RULING: The motion is GRANTED. Defendant Calistoga Third Street Investors (“Investors”) shall serve verified, code-compliant responses, without objections, to Plaintiff Massimo Falsini’s (“Plaintiff”) Request for Production of Documents, Set Two (“Requests”) within 10 calendar days of service of notice of entry of order. Investors is further ordered to pay, within 10 calendar days of notice of entry of this order, sanctions to Plaintiff, care of his attorney of record, in the amount of \$716.65.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff moves for an order compelling Investors to serve verified, code-compliant responses, without objections, to the Requests within ten (10) calendar days of service of the Court’s order; for an order confirming that all objections, including objections based on privilege and work product, have been waived absent an order relieving Investors from waiver; and monetary sanctions in the amount of \$1,247.90 against Investors and its counsel, Clinton & Clinton, jointly and severally.

If a party to whom requests for production of documents were directed fails to serve a timely response, the responding party waives all objections and the propounding party may move for an order compelling responses and for a monetary sanction. (Code Civ. Proc., § 2031.300, subds. (a)-(c).) All that need be shown in the moving papers is that a request for production was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (Weil & Brown, Cal. Practice Guide, Civ. Proc. Before Trial (The Rutter Group 2022), Ch. 8F, § 8:1140, p. 8F-59, citing *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-06.) The moving party is not required to show a “reasonable and good faith attempt” to resolve the matter informally with opposing counsel before filing the motion. (Code Civ. Proc., § 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants*, (2007) 148 Cal.App.4th 390, 411.)

Plaintiff submits evidence demonstrating that the discovery was properly propounded and timely responses were not served. (Declaration of Scott M. Harris (“Harris Decl.”) at ¶¶ 2-10.) Thus, Investors shall serve verified, code-compliant responses, without objections, within 10 calendar days of service of notice of entry of order. (Code Civ. Proc., § 2031.300, subds. (a)-(b).)

“The court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully . . . opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (*Id.*, § 2031.300, subd. (c).) Moreover, “[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed.” (Rules of Court, rule 3.1348, subd. (a).)

The Court finds neither that Investors acted with substantial justification nor that other circumstances make imposition of sanctions unjust, as Investors failed to file an opposition to the motion. The Court finds that the hourly rate charged by counsel is reasonable. (See Harris Decl. at ¶ 12.) The Court further finds that 1.5 hours is a reasonable number of billable hours for preparation of the motion. (*Ibid.*) The Court does not, however, grant sanctions for estimated future fees. (See *ibid.*)

Based on the foregoing, Plaintiff’s request for sanctions as against Investors is GRANTED IN PART. Investors is ordered to pay to Plaintiff, care of their attorney of record, within 10 calendar days of notice of entry of this order, sanctions in the amount of \$716.65 [= \$1.5 hrs x \$425/hr + \$79.15 filing fee (incl. e-filing fee)].

[2] PLAINTIFF MASSIMO FALSINI’S MOTION TO COMPEL CALISTOGA THIRD STREET INVESTORS RESPONSES TO **SPECIAL INTERROGATORIES SET TWO**, AND FOR MONETARY SANCTIONS AGAINST DEFENDANT **CALISTOGA THIRD STREET INVESTORS** AND ITS COUNSEL [Filed 8/26/26]

TENTATIVE RULING: The motion is GRANTED. Defendant Calistoga Third Street Investors (“Investors”) shall serve verified, code-compliant responses, without objections, to Plaintiff Massimo Falsini’s (“Plaintiff”) Special Interrogatories, Set Two (“Special

Interrogatories”). Investors is further ordered to pay, within 10 calendar days of notice of entry of this order, sanctions to Plaintiff, care of his attorney of record, in the amount of \$716.65.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff moves for an order compelling Investors to serve verified, code-compliant responses, without objections, to the Special Interrogatories within ten (10) calendar days of service of the Court’s order; for an order confirming that all objections, including objections based on privilege and work product, have been waived absent an order relieving Investors from waiver; and monetary sanctions in the amount of \$1,247.90 against Investors and its counsel, Clinton & Clinton, jointly and severally.

If a party to whom interrogatories were directed fails to serve a timely response, the responding party waives all objections and the propounding party may move for an order compelling responses and for a monetary sanction. (Code Civ. Proc., § 2030.290, subds. (a)-(c).) All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (Weil & Brown, Cal. Practice Guide, Civ. Proc. Before Trial (The Rutter Group 2022), Ch. 8F, § 8:1140, p. 8F-59, citing *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-06.) The moving party is not required to show a “reasonable and good faith attempt” to resolve the matter informally with opposing counsel before filing the motion. (Code Civ. Proc., § 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants*, (2007) 148 Cal.App.4th 390, 411.)

Plaintiff submits evidence demonstrating that the discovery was properly propounded and timely responses were not served. (Declaration of Scott M. Harris (“Harris Decl.”) at ¶¶ 2-10.) Thus, Investors shall serve verified code-compliant responses, without objections, within 10 calendar days of service of notice of entry of order. (Code Civ. Proc., § 2030.290, subds. (a)-(b).)

“The court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully . . . opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (§ 2030.290, subd. (c).) Moreover, “[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed.” (Rules of Court, rule 3.1348, subd. (a).)

The Court finds neither that Investors acted with substantial justification nor that other circumstances make imposition of sanctions unjust, as Investors failed to file an opposition to the motion. The Court finds that the hourly rate charged by counsel is reasonable. (See Harris Decl.

at ¶ 12.) The Court further finds that 1.5 hours is a reasonable number of billable hours for preparation of the motion. (*Ibid.*) The Court does not, however, grant sanctions for estimated future fees. (See *ibid.*)

Based on the foregoing, Plaintiff's request for sanctions as against Investors is GRANTED IN PART. Investors is ordered to pay to Plaintiff, care of their attorney of record, within 10 calendar days of notice of entry of this order, sanctions in the amount of \$716.65 [= \$1.5 hrs x \$425/hr + \$79.15 filing fee (incl. e-filing fee)].

[3] PLAINTIFF MASSIMO FALSINI'S MOTION TO COMPEL WYMAN PROPERTY MANAGEMENT RESPONSES TO **REQUEST FOR PRODUCTION OF DOCUMENTS SET TWO**, AND FOR MONETARY SANCTIONS AGAINST DEFENDANT **WYMAN PROPERTY MANAGEMENT** AND ITS COUNSEL [Filed 8/26/26]

TENTATIVE RULING: The motion is GRANTED. Defendant Wyman Property Management ("Wyman") shall serve verified, code-compliant responses, without objections, to Plaintiff Massimo Falsini's ("Plaintiff") Request for Production of Documents, Set Two ("Requests") within 10 calendar days of service of notice of entry of order. Wyman is further ordered to pay, within 10 calendar days of notice of entry of this order, sanctions to Plaintiff, care of his attorney of record, in the amount of \$716.65.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff moves for an order compelling Wyman to serve verified, code-compliant responses, without objections, to the Special Interrogatories within ten (10) calendar days of service of the Court's order; for an order confirming that all objections, including objections based on privilege and work product, have been waived absent an order relieving Wyman from waiver; and monetary sanctions in the amount of \$1,247.90 against Wyman and its counsel, Clinton & Clinton, jointly and severally.

If a party to whom requests for production of documents were directed fails to serve a timely response, the responding party waives all objections and the propounding party may move for an order compelling responses and for a monetary sanction. (Code Civ. Proc., § 2031.300, subds. (a)-(c).) All that need be shown in the moving papers is that a request for production was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (Weil & Brown, Cal. Practice Guide, Civ. Proc. Before Trial (The Rutter Group 2022), Ch. 8F, § 8:1140, p. 8F-59, citing *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-06.) The moving party is not required to show a "reasonable and good faith attempt" to resolve the matter informally with opposing counsel before filing the motion. (Code

Civ. Proc., § 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants*, (2007) 148 Cal.App.4th 390, 411.)

Plaintiff submits evidence demonstrating that the discovery was properly propounded and timely responses were not served. (Declaration of Scott M. Harris (“Harris Decl.”) at ¶¶ 2-10, Exh. A.) Thus, Wyman shall serve verified, code-compliant responses, without objections, within 10 calendar days of service of notice of entry of order. (Code Civ. Proc., § 2031.300, subds. (a)-(b).)

“The court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully . . . opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (*Id.*, § 2031.300, subd. (c).) Moreover, “[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed.” (Rules of Court, rule 3.1348, subd. (a).)

The Court finds neither that Wyman acted with substantial justification nor that other circumstances make imposition of sanctions unjust, as Wyman failed to file an opposition to the motion. The Court finds that the hourly rate charged by counsel is reasonable. (See Harris Decl. at ¶ 12.) The Court further finds that 1.5 hours is a reasonable number of billable hours for preparation of the motion. (*Ibid.*) The Court does not, however, grant sanctions for estimated future fees. (See *ibid.*)

Based on the foregoing, Plaintiff’s request for sanctions as against Wyman is GRANTED IN PART. Wyman is ordered to pay to Plaintiff, care of their attorney of record, within 10 calendar days of notice of entry of this order, sanctions in the amount of \$716.65 [= \$1.5 hrs x \$425/hr + \$79.15 filing fee (incl. e-filing fee)].

[4] PLAINTIFF MASSIMO FALSINI’S MOTION TO COMPEL RESPONSES TO **SPECIAL INTERROGATORIES SET TWO**, AND FOR MONETARY SANCTIONS AGAINST DEFENDANT **WYMAN PROPERTY MANAGEMENT** AND ITS COUNSEL [Filed 8/26/26]

TENTATIVE RULING: The motion is GRANTED. Defendant Wyman Property Management (“Wyman”) shall serve verified, code-compliant responses, without objections, to Plaintiff Massimo Falsini’s (“Plaintiff”) Special Interrogatories, Set Two (“Special Interrogatories”). Wyman is further ordered to pay, within 10 calendar days of notice of entry of this order, sanctions to Plaintiff, care of his attorney of record, in the amount of \$716.65.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of

hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff moves for an order compelling Wyman to serve verified, code-compliant responses, without objections, to the Special Interrogatories within ten (10) calendar days of service of the Court's order; for an order confirming that all objections, including objections based on privilege and work product, have been waived absent an order relieving Wyman from waiver; and monetary sanctions in the amount of \$1,247.90 against Wyman and its counsel, Clinton & Clinton, jointly and severally.

If a party to whom interrogatories were directed fails to serve a timely response, the responding party waives all objections and the propounding party may move for an order compelling responses and for a monetary sanction. (Code Civ. Proc., § 2030.290, subds. (a)-(c).) All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (Weil & Brown, Cal. Practice Guide, Civ. Proc. Before Trial (The Rutter Group 2022), Ch. 8F, § 8:1140, p. 8F-59, citing *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-06.) The moving party is not required to show a "reasonable and good faith attempt" to resolve the matter informally with opposing counsel before filing the motion. (Code Civ. Proc., § 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants*, (2007) 148 Cal.App.4th 390, 411.)

Plaintiff submits evidence demonstrating that the discovery was properly propounded and timely responses were not served. (Declaration of Scott M. Harris ("Harris Decl.") at ¶¶ 2-10.) Thus, Wyman shall serve verified code-compliant responses, without objections, within 10 calendar days of service of notice of entry of order. (Code Civ. Proc., § 2030.290, subds. (a)-(b).)

"The court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully . . . opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (§ 2030.290, subd. (c).) Moreover, "[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed." (Rules of Court, rule 3.1348, subd. (a).)

The Court finds neither that Wyman acted with substantial justification nor that other circumstances make imposition of sanctions unjust, as Wyman failed to file an opposition to the motion. The Court finds that the hourly rate charged by counsel is reasonable. (See Harris Decl. at ¶ 12.) The Court further finds that 1.5 hours is a reasonable number of billable hours for preparation of the motion. (*Ibid.*) The Court does not, however, grant sanctions for estimated future fees. (See *ibid.*)

Based on the foregoing, Plaintiff's request for sanctions as against Wyman is GRANTED IN PART. Investors is ordered to pay to Plaintiff, care of their attorney of record, within 10 calendar days of notice of entry of this order, sanctions in the amount of \$716.65 [= \$1.5 hrs x \$425/hr + \$79.15 filing fee (incl. e-filing fee)].

DEFENDANT SRGA RESORT, LP'S MOTION FOR LEAVE TO WITHDRAW ITS ANSWER

TENTATIVE RULING: The motion is GRANTED. The matter is set for Case Management Conference on October 23, 2026, at 9:30 in Dept. B. The Clerk is directed to send notice to the parties.

Defendant SRGA Resort (SRGA) moves, pursuant to Code of Civil Procedure section 585, subdivision (b), for an order granting Defendant SRGA leave to withdraw its Answer to Plaintiff's Complaint, so that Plaintiff Jessica Fernandez may proceed to request entry of default against Defendant SRGA.

SRGA cites caselaw sanctioning a trial court's decision to permit a defendant to withdraw its operative answer. (See, *e.g.*, *Brown v. Brown* (1932) 125 Cal.App. 429, 438 [held: where no fraudulent purpose is established, appellant "is in no position to complain of the court's action in permitting his co-defendant's answer to be withdrawn"]; see also *Israel v. Super. Ct. of San Diego Co.* (1919) 43 Cal.App. 711, 713 ["That the court in permitting the defendant Bryan to withdraw his answer was acting within its jurisdiction is not and, in our opinion, cannot be, questioned in this proceeding"].)

There is no opposition to the Motion in the Court's files.

Based on the foregoing, the Motion is GRANTED.

[1] DEMURRER TO PLAINTIFF MARBIN SANTIS RUIZ'S FIRST AMENDED COMPLAINT

TENTATIVE RULING: The demurrer is SUSTAINED WITH LEAVE TO AMEND. Plaintiff is granted 10 days' leave from notice of entry of order to amend. (See Rules of Court, rule 3.1320(g).) Defendant is directed to provide a Notice of Entry of Order.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTER

Defendant Norberto Celerino (“Celerino”) demurs, pursuant to Code of Civil Procedure section 430.10, subdivision (e), to Plaintiff Marbin Santis Ruiz’s (“Santiz Ruiz” or “Plaintiff”) First Amended Complaint (“FAC”) on the ground that the FAC fails to state facts sufficient to constitute the Third Cause of Action for Intentional Infliction of Emotional Distress (“IIED”) against Defendant.

The FAC arises from a motor vehicle accident, wherein Celerino picked up Santis Ruiz at his residence in Stockton, California and drove him to Silvia Cellars, LLC in Napa, California for grape harvesting. (FAC, ¶ 13.) During the trip, Celerino was allegedly under the influence of alcohol and/or other substances and drove the vehicle onto opposing traffic lanes. (FAC, ¶¶ 14-15.)

B. LEGAL STANDARD

A complaint must contain “facts constituting the cause of action.” (§ 425.10, subd. (a)(1).) The party against whom a complaint has been filed may object, by demurrer, on the grounds that “[t]he pleading does not state facts sufficient to constitute a cause of action,” “[t]he pleading is uncertain,” or “[i]n an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct.” (§ 430.10, subds. (e)-(g).)

A demurrer is treated as “admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The Court must “construe the allegations of a complaint liberally in favor of the pleader.” (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.) The Court must also accept as true facts that may be inferred from those expressly alleged. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) The Court may also consider as grounds for a demurrer any matter that is judicially noticeable under Evidence Code sections 451 or 452. (Code. Civ. Proc., § 430.30, subd. (a).) Because “[a] demurrer tests only the legal sufficiency of the pleading . . . the question of plaintiff’s ability to prove the [] allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Comm. on Children’s Television, Inc. v. Gen. Foods Corp.* (1983) 35 Cal.3d 197, 213-14.)

C. DISCUSSION

The essential elements of a cause of action for IIED are: (1) Extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) The plaintiff’s suffering severe or extreme emotional distress; and (3) Actual and proximate causation of the emotional distress by the defendant’s outrageous conduct. (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050-1051.)

Celerino argues that the FAC fails to state facts to supply any of the three essential elements for the claim.

As to the first, Celerino argues that a plaintiff seeking to bring an IIED claim arising from a DUI incident needs to allege conduct beyond the act of drunk driving itself – such as intentional targeting of the plaintiff, a pattern of reckless behavior, or other aggravating circumstances that collectively rise to the level of atrocious and utterly intolerable conduct. Celerino argues the FAC does not plead such facts. (Mem., 3:15-21, citing FAC, ¶ 28.)

Celerino argues that the FAC sufficiently states an IIED cause of action because it alleges that Plaintiff made a deliberate decision to become legally intoxicated and then operate a motor vehicle while knowingly transporting Plaintiff. In support, Santis Ruiz cites to FAC ¶¶ 13-15, 27-30.

None of the authority cited by Celerino supports the proposition that a DUI-based IIED claim cannot be based solely upon the act of drunk driving itself. The Court finds that the FAC contains allegations, albeit not under the label for the IIED cause of action, sufficient to state extreme and outrageous conduct by Celerino with reckless disregard of the probability of causing emotional distress to Santis Ruiz. (See FAC ¶¶ 13-15, 27-30.) While Celerino is correct that the FAC does not allege an abundance of details which might further support that his conduct in deliberately becoming legally intoxicated while driving passengers was extreme and outrageous, a complaint is only required to plead the ultimate facts. (See Reply, 3:2-8.)

As to the second element, Celerino argues that the FAC fails to set forth facts indicating the nature and extent of the severe emotional distress. (Mem., 4:13-22, citing FAC, ¶¶ 43, 47.) In Opposition, Santis Ruiz argues that the allegations in Paragraphs 17-19 and 43 are sufficient. Other than physical injuries, the Court does not find that those paragraphs of the FAC allege *facts* as to the mental and emotional distress suffered. Moreover, Santis Ruiz offers in Opposition additional facts in this respect that can be added to an amended pleading.

As to the third element, Celerino argues that the FAC does not allege that Celerino acted with the intent of causing emotional distress to Santis Ruiz or knowledge that his conduct was substantially certain to cause distress to Santis Ruiz. (Mem., 3:22-4:12, citing *Christensen v. Sup. Ct.* (1991) 54 Cal.3d 868, 903.)

In Opposition, Santis Ruiz cites to Paragraphs 13-18, 27-30, 34, and 36 in support of his contention that the FAC properly alleges facts to state that Celerino was aware of, but acted with reckless disregard of the plaintiff and the probability that his conduct will cause severe emotional distress to Santis Ruiz.

The Court agrees with Santis Ruiz that the FAC sufficiently alleges facts to meet the element that Celerino acted with reckless disregard of Santis Ruiz and the probability that his conduct would cause severe emotional distress to Santis Ruiz. (See *Christensen, supra*, 54 Cal.3d at 905 [“The law limits claims of intentional infliction of emotional distress to egregious conduct *toward plaintiff* proximately caused by defendant. [Citation.] The only exception to this rule is that recognized when the defendant is aware of, but acts with reckless disregard of the

plaintiff and the probability that his conduct will cause severe emotional distress to that plaintiff.”].)

Based on the foregoing, the demurrer is SUSTAINED WITH LEAVE TO AMEND. The FAC shall be amended to allege facts constituting the nature and extent of Santis Ruiz’s severe emotional distress. Moreover, Santis Ruiz is invited to include, in his amended pleading, any of the additional, proposed amendments included on page 7 of his Opposition.

[2] MOTION TO STRIKE PORTIONS OF THE FIRST AMENDED COMPLAINT

TENTATIVE RULING: The motion is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Defendant Norberto Celerino (“Celerino”) moves, pursuant to Code of Civil Procedure section 435, *et seq.*, to strike the punitive damages allegations and prayer from Plaintiff Marbin Santis Ruiz’s First Amended Complaint (“FAC”).

Given that Santis Ruiz has been granted leave to amend the FAC by the Court’s concurrent ruling on Celerino’s demurrer, and given Santis Ruiz’s inclusion in Opposition of proposed amendments that can be made to the FAC to improve his punitive damages allegations and prayer, the Court finds the most efficient way to proceed is to grant the instant motion with leave to amend to allow Santis Ruiz to include those additional allegations.

.....
Alexander Rowland et al v. Newco Capital Group LLC et al

25CV002471

DEMURRER OF DEFENDANTS NEWCO CAPITAL GROUP LLC AND NEWCO CAPITAL GROUP VI LLC TO COMPLAINT

TENTATIVE RULING: The Demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

A. PROCEDURAL MATTERS

Defendants Newco Capital Group, LLC (“Newco”) and Newco Capital Group VI LLC (“Newco LLC”) (collectively, “Defendants”) demur, pursuant to Code of Civil Procedure

430.10, subdivisions (e) and (f),¹ to the Complaint of Plaintiffs Lernalabs, Inc. (“Lernalabs”) and Alexander Rowland (“Rowland”) (collectively, “Plaintiffs”).

Defendants argue that the First Cause of Action for Unfair and Deceptive Trade Practices under Business & Professions Code section 17200 (“UCL”) and Second Cause of Action for Usury are barred by claim preclusion, merger, the Full Faith and Credit Clause, collateral estoppel, and collateral attack upon a final sister-state judgment. Specifically, Defendants argue that the two causes of action, here, arise from the same Revenue Purchase Agreement (“Agreement”) upon which Defendants obtained a default judgment against Plaintiffs in a New York action on February 20, 2026 (“New York Judgment”).

In Opposition, Plaintiffs argue that claim preclusion cannot apply because the present action was filed *prior* to the New York action in which the Judgment was entered, and the New York action did not adjudicate Plaintiffs’ usury or UCL claims. Plaintiffs argue that issue preclusion does not apply because the issues raised in the present lawsuit were not actually litigated or necessarily decided, and not all parties were involved, in the New York action. Plaintiffs argue that the Full Faith and Credit Clause is not a ground upon which to sustain the demurrer because, even under New York law, the New York Judgment would not preclude the present case. Plaintiffs argue that Defendants’ merger theory does not apply because the two actions involve different primary rights and, therefore, the two causes of action asserted in the present action cannot merge into the New York judgment. Plaintiffs finally argue that Rowland and Newco LLC are not identical or parties in privity with the parties to the New York Judgment and therefore the New York Judgment does not serve to preclude the claims here asserted by Rowland and Newco LLC.

B. RELEVANT FACTUAL BACKGROUND

On November 21, 2025, Plaintiffs filed their Complaint in the present action. The causes of action in the Complaint are based on the Agreement, attached as Exhibit B to the Complaint. (Compl., ¶ 17, Exh. B.) The Agreement is between Newco (as Funder), Lernalabs (as Merchant), and Rowland (as Guarantor). (*Ibid.*) Plaintiffs allege that the Agreement is the result of Defendants’ unlawful conduct under the Business & Professions Code and that the true object of the Agreement is a loan of money at a usurious rate of interest. (Compl., ¶¶ 119, 126-130.) Plaintiffs seek damages including financial losses from the costs of defending against Defendants’ unlawful business practices, reputational harm, overpayments in interest in excess of the legally permissible limits, injunctive relief to prohibit Defendants from continuing their unlawful practices, restitution to restore Plaintiffs to the position they would have been in but for Defendants’ actions, and declaratory relief setting out the parties’ rights and duties under the Agreement. (Compl., ¶¶ 122, 124, 134, 136.)

On January 7, 2026, Newco filed a Verified Complaint in New York (“NY Complaint”). (Defs.’ Request for Judicial Notice (“RJN”), Exh. 1.) The NY Complaint names Lernalabs as a defendant; it does not name Rowland. (*Ibid.*) The NY Complaint asserts a single cause of action for breach of the Agreement, alleging that Newco fully performed under the Agreement and Lernalabs breached by failing to remit to Newco its share of Future Receivables. (*Id.*, ¶¶ 5, 14,

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

17, Exh. A.) Newco sought \$226,340 plus interest, costs, and disbursements from Lernalabs by way of the NY Complaint. (*Id.*, ¶ 12, 18.)

On February 20, 2026, the New York court issued a default judgment against Lernalabs, in the total amount of \$233,045.70. (RJN, Exh. 4.)

On March 5, 2026, Defendants moved to stay or dismiss the present case based upon the New York Forum Selection Clause in the Agreement, forum non-conveniens, and other action “pending” in New York. On May 8, 2026, the Court denied Defendants’ motion on the ground that they failed to meet their burden on the motion of showing that litigating the claims in New York would not diminish in any way the substantive rights afforded Plaintiffs under California law; a requirement for forum selection clause analysis when a California complaint alleges a usury cause of action. (5/8/26 Minute Order.) Although the New York Judgment was attached to Defendants’ request for judicial notice and referenced in counsel’s declaration, Defendants’ memorandum of points and authorities represented that the New York action was “pending” and made no reference to the New York Judgment, and Defendants did not base their requested relief for stay or dismissal of the present action upon the issuance of the New York Judgment.

Now, Defendants demurrer to the Complaint on the grounds that the New York Judgment bars the present action from proceeding.

C. LEGAL STANDARD

A complaint must contain “facts constituting the cause of action.” (§ 425.10, subd. (a)(1).) The party against whom a complaint has been filed may object, by demurrer, on the grounds that “[t]he pleading does not state facts sufficient to constitute a cause of action,” “[t]he pleading is uncertain,” or “[i]n an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct.” (§ 430.10, subds. (e)-(g).)

A demurrer is treated as “admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The Court must “construe the allegations of a complaint liberally in favor of the pleader.” (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.) The Court must also accept as true facts that may be inferred from those expressly alleged. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) The Court may also consider as grounds for a demurrer any matter that is judicially noticeable under Evidence Code sections 451 or 452. (Code. Civ. Proc., § 430.30, subd. (a).) Because “[a] demurrer tests only the legal sufficiency of the pleading . . . the question of plaintiff’s ability to prove the [] allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Comm. on Children’s Television, Inc. v. Gen. Foods Corp.* (1983) 35 Cal.3d 197, 213-14.)

D. DISCUSSION

The parties agree that the Full Faith and Credit Clause requires California courts to give a sister-state judgment the same preclusive effect it would receive in the rendering state. (Mem.,

6:9-14; Opp., 6:11-13, citing *R.S. v. Pacificare Life Health Ins. Co.* (2011) 194 Cal.App.4th 192.) In other words, the question of whether a sister-state judgment has res judicata effect as to another action in a separate state is controlled by the law of the state which rendered the judgment. (See *R.S.*, *supra*, 194 Cal.App.4th at 201-02; see also *Martin v. Martin* (1970) 2 Cal.3d 752, 761, fn. 13 [“[T]he general principle [is] that the validity and effect of a judgment of a sister state are governed by the law of the state where the judgment was rendered.”].) Thus, under the Full Faith and Credit analysis, the preclusive effect of the New York Judgment in California is governed by the law of the rendering state—here, New York law.

Plaintiffs argue that the present action would not be barred under New York law because New York does not have a compulsory counterclaim requirement; counterclaims in New York are permissive only. Thus, claims that could have been, but were not, brought as a permissive counterclaim in New York (such as Plaintiffs’ two causes of action, here) are preserved *unless* the separate action would impair rights established by the prior judgment. (Opp., 6:17-21, citing cases.) Plaintiffs argue that Defendants have not shown that the present action would impair the rights established by the New York Judgment, such that the present action would be barred under New York law.

Plaintiffs accurately state the res judicata law of New York—notwithstanding New York’s permissive counterclaim rule, “a defendant who fails to bring a counterclaim in an action that results in an adverse judgment will be barred from bringing that same claim only if the two causes of action have such a measure of identity that a different judgment in the second would destroy or impair rights or interests established by the first.” (*Vince’s Pizza Plus, Inc. v. DeFedericis* (N.Y. App. Div. 2026) 251 A.D.3d 1548, 1550.)

The Court finds, however, that Defendants have established that the rights and interests established by the New York Judgment would be destroyed or impaired by the judgment Plaintiffs are seeking in the present action. (Mem., 9:25-10:12.) In Opposition, Plaintiffs fail to controvert that showing or otherwise persuade the Court that the present action would not impair or destroy the rights and interests established by the New York Judgment.

“Under New York’s transactional-analysis approach to res judicata, ‘once a claim is brought to a final conclusion, all other claims arising out of the same transaction or series of transactions are barred even if based upon different theories or if seeking a different remedy’ ([citations]). The doctrine is applicable to a judgment taken by default which has not been vacated, as well as to defenses which were or could have been raised in the action ([citation]). ... [¶] Furthermore, although New York does not have a compulsory counterclaim rule, ‘a party is not free to remain silent in an action in which he is the defendant and then bring a second action seeking relief inconsistent with the judgment in the first action by asserting what is simply a new legal theory’ ([citations]).” (*Santiago v. Lalani* (N.Y. App. Div. 1998) 256 A.D.2d 397, 398.)

Here, the claims asserted by Plaintiffs clearly arise out of the same Agreement which was at issue in the New York action. Moreover, Plaintiffs’ present claims could have been raised as defenses in the New York action and, if accepted, would impair Newco’s rights established by the Judgment rendered in that action. Notably, the New York Judgment established that Newco is entitled to a specific sum from Plaintiffs under the Agreement, and Plaintiffs’ present action

seeks, among other things, to enjoin Defendants from enforcing the Agreement, in a way that would effectively nullify or undermine Defendants' entitlement to the sum certain under the Agreement.

Thus, Plaintiffs' claims are barred by the doctrine of res judicata under New York law. Because the New York Judgment would have the effect, under New York res judicata principles, of barring the present action from proceeding, the Full Faith and Credit Clause operates to bar the present action.

Plaintiffs take issue with the fact that res judicata cannot serve to bar this *first-filed* action. However, such contention has been rejected. Both California and New York courts hold that that, "[w]here two actions involving the same issue are pending at the same time, it is not the final judgment in the first suit, but *the first final judgment* [even if rendered in the second suit] that renders the issue *res judicata* in the other court." (*Consumer Advoc. Grp., Inc. v. ExxonMobil Corp.* (2008) 168 Cal.App.4th 675, 684, emphasis in original [discussing claim preclusion]; see also *Tyler v. Standard Wine Co.* (1906) 102 N.Y.S. 65, 67 "[T]he date of the commencement of the actions, respectively, is of no consequence as to the effect of the [first rendered] judgment as res adjudicata."].)

Thus, the fact that the New York action was filed after the California action is irrelevant, where the New York Judgment became final while the California action remains pending without a final judgment. In these circumstances, the New York Judgment is the first final judgment and controls, for res judicata purposes, even over a first-filed action.

Plaintiffs further take issue with the fact that the New York Judgment is solely between Defendant Newco and Plaintiff Lernalabs, and that Defendant Newco LLC and Plaintiff Rowland were not parties and are not in privity with the parties to the New York action. (See Opp., 9:12-10:13.)

For claim preclusion, the party against whom the doctrine is being asserted must be a party or in privity with a party to the other proceeding. (*Hong Sang Market, Inc. v. Peng* (2018) 20 Cal.App.5th 474, 489; see also *Paramount Pictures Corp. v. Allianz Risk Transfer AG* (2018) 31 N.Y.3d 64, 73.) Privity requires the sharing of an identity or community of interest, with adequate representation of that interest in the first suit, and circumstances such that the nonparty should reasonably have expected to be bound by the first suit. (*Grande v. Eisenhower Medical Center* (2022) 13 Cal.5th 313, 319; see also *Shanghai Pearls & Gems, Inc. v. Paul* (N.Y. 2015) 239 A.D.3d 31, 36 "[Privity analysis] requires courts to consider 'whether the circumstances of the actual relationship, the mutuality of interests, and the manner in which the nonparty's interest were represented in the earlier litigation established a functional representation such that the nonparty may be thought to have had a vicarious day in court.'"]/)

Here, the res judicata doctrine is being asserted against Plaintiffs Lernalabs and Rowland. It is undisputed that Lernalabs was a party to the New York action.

Plaintiffs argue that Defendants’ representation of Rowland’s relationship with Lernalabs—that Rowland’s interests are derivative of Lernalab’s contractual rights as its founder, owner, and principal—is insufficient to establish privity. (Opp., 9:22-10:2.)

Defendants argue that the relationship as alleged through the Complaint is sufficient. Specifically, Rowland was Lernalabs’ founder, owner, and principal, Rowland’s requested recovery is based on the same corporate transactions, withdrawals, and collection activity as that of Lernalabs’, there is no separate payment, agreement, or injury personal to Rowland alleged in the Complaint, and an owner has no individual standing to recover for an injury to the corporation. (Mem., 9:6-15; Reply, 6:9-13.)

The Court has reviewed the Complaint which alleges that Rowland is “[Lernalab’s] largest shareholder and chief executive officer” (see Compl., ¶ 33) and Rowland’s claimed rights arise entirely through Lernalabs and the same Agreement, to which Rowland is a party as Lernalabs’ Guarantor. The Court finds that the Complaint establishes the requisite privity between Rowland and Lernalabs, in that (1) they share an identity and community of interest with respect to the allegations and relief sought in the Complaint, (2) Lernalabs’ status as a party in the New York action offered Rowland adequate representation of his interests in that suit, and (3) Rowland should reasonably have expected to be bound by the New York Judgment. (*Grande, supra*, 13 Cal.5th at 319.)

Based on the foregoing, the demurrer is SUSTAINED on the ground that the action is barred by claim preclusion under the Full Faith & Credit Clause. Plaintiffs’ request for leave to amend the privity allegations is denied, as it does not appear, nor do Plaintiffs contend, that they can truthfully amend the allegations to remove the requisite privity finding.

****at 9:30 a.m.****

SZS Napa LLC v. Brad Oldenbrook et al

24CV001136

TEAM BUILT CONSTRUCTION, INC.’S MOTION FOR GOOD FAITH SETTLEMENT

TENTATIVE RULING: The motion is GRANTED.

Defendant Team Built Construction, Inc. (Team Built) moves, pursuant to Code of Civil Procedure section 877.6, for an order determining that the settlement agreement between Plaintiff SZS Napa LLC and Team Built is entered into in good faith.

“[T]he intent and policies underlying section 877.6 require that a number of factors be taken into account including a rough approximation of plaintiffs’ total recovery and the settlor’s proportionate liability, the amount paid in settlement, the allocation of settlement proceeds among plaintiffs, and a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial. Other relevant considerations include the financial conditions and insurance policy limits of settling defendants, as well as the existence of collusion, fraud, or

tortious conduct aimed to injure the interests of nonsettling defendants.” (*Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488, 499.)

However, a party objecting that a settlement lacks good faith has the burden of proving the issue. (Code Civ. Proc. § 877.6.) Therefore, “when no one objects, the barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case is sufficient.” (*City of Grand Terrace v. Super. Ct.* (1987) 192 Cal.App.3d 1251, 1261.) In such case, the trial court is not required “to consider and weigh the *Tech-Bilt* factors.” (*Ibid.*)

The present motion is unopposed. The Court finds that it sets forth the ground of good faith and is accompanied by declarations sufficient to set forth a brief background of the case. On this basis, the Court finds that the settlement entered into between Plaintiffs and moving Defendant is a settlement in good faith pursuant to Code of Civil Procedure Section 877.6. (*City of Grand Terrace v. Super. Ct., supra*, 192 Cal.App.3d at 1261.)

****at 9:30 a.m.****

San Giorgio Ventures, LLC v. County of Napa

24CV001787

[1] MERITS DETERMINATION HEARING

[2] MOTION FOR JUDGMENT

APPEARANCE REQUIRED. Because of scheduling conflicts the Court will be unable to hear the matter. However, the parties are directed to appear in order to set the matter for continued hearing.

****at 9:30 a.m.****

Caroline Geitner v. Tia Sonesouphab et al

24CV002118

DEFENDANTS ST. JOSEPH HEALTH NORTHERN CALIFORNIA, LLC D/B/A PROVIDENCE QUEEN OF THE VALLEY MEDICAL CENTER, PROVIDENCE ST. JOSEPH HEALTH, PROVIDENCE HEALTH & SERVICES, AND TIA SONESOUPHAB’S MOTION FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION

TENTATIVE RULING: The matter is CONTINUED to October 16, 2025, at 9:30 a.m. in Dept. A. Plaintiff Caroline Geitner is granted leave to serve and file, no later than October 2, 2026, another separate statement consistent with the discussion, below.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies

forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A party opposing a motion for summary judgment is required to file a separate statement in opposition to the moving party's motion. (See Cal. Rules of Court, rule 3.1350, subd. (e)(2).) That statement must be in a specific form and include specific content. (See *Id.* at subd. (f).) "If the opposing party contends that additional material facts are pertinent to the disposition of the motion, those facts must be set forth in the separate statement. The separate statement should include only material facts and not any facts that are not pertinent to the disposition of the motion. Each fact must be followed by the evidence that establishes the fact. Citation to the evidence in support of each material fact must include reference to the exhibit, title, page, and line numbers." (*Id.* at subd. (f)(3).)

The document titled "PLAINTIFF'S RESPONSE TO DEFENDANTS' SEPARATE STATEMENT OF UNDISPUTED MATERIAL FACTS IN SUPPORT OF MOTION FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION" (Responsive Separate Statement) fails to satisfy the requirements of the Rules of Court discussed above. *Each* of the purported Additional Material Facts (AMF) set forth therein consists of multiple statements of fact; many consist of an entire paragraph of narrative. The right column of each AMF contains *multiple* citations to evidence, undifferentiated as to which statement(s) of fact in the left column that evidence supports. The AMFs are not organized by issue or cause of action.

Moreover, in reviewing a few of the AMFs, the Court finds that the Responsive Separate Statement is riddled with inaccuracies and errors. Much of the evidence cited does not, in fact, bear any relevance to any of the statements the citation corresponds to. (See, *e.g.*, AMF No. 1, "Allen Dep. Ex. 2 . . . Sonesouphab Dep. Vol. II 15:23-19:09; Plaintiff Dep. 99:5-15.) There are AMFs that are unsupported by any of the cited evidence. (See, *e.g.*, AMF No. 11.) The Responsive Separate Statement also cites to evidence that does not appear to have been presented. (See, *e.g.*, AMF No. 11, citing Plaintiff Dep. pp. 186 and 236.)

In addition, Plaintiff's decision to cite to evidence by document name and page number, rather than by directing the Court to the Part and page number of the Declaration of Brooke C. Bellah in which the evidence is submitted, creates significant unnecessary work for the Court in attempting to locate the cited evidence among the over 600 pages of evidence.² This problem is exacerbated by Plaintiff's failure to index the electronic (pdf) filings, and decision to combine multiple documents into single Exhibits. (See, *e.g.*, Declaration of Brooke C. Bellah at Exh. E.)

Taken together, the form of the evidence presented and the significant shortcomings of the Responsive Separate Statement make it impossible for the Court to adequately assess Plaintiff's evidentiary showing in opposition to the motion.

² Plaintiff's evidence is submitted in the form of a three-part Declaration of Brooke C. Bellah with Part 1 consisting of some 172 pages, Part 2 consisting of some 347 pages, and Part 3 consisting of some 104 pages.

In this context, the Court notes the holding in *Parkview Villas Assn., Inc. v. State Farm Fire & Casualty Co.* (2005) 133 Cal.App.4th 1197 (*Parkview Villas*). “[I]n the absence of extraordinary circumstances . . . a trial court faced with an opposing party’s defective separate statement plainly indicating which proposed material facts are disputed and including at least general references to the evidence supporting its position does not have the discretion to enter a judgment against that party solely as a result of that party’s failure to explain the nature of the dispute and to provide sufficiently specific citations to the evidence supporting its position.” (*Id.* at 1214-1215.) Plaintiff’s separate statement sufficiently indicates which proposed material facts are disputed. It also includes “general references to the evidence [purportedly] supporting [Plaintiff’s] position.” (*Ibid.*)

In light of the *Parkview Villas* holding and in an abundance of respect for the general policy that the Court seek to avoid granting a motion for summary judgment on a curable procedural defect, the Court feels compelled to grant Plaintiff leave to attempt to cure the deficiencies in the separate statement’s citation to evidence on file with the Court. However, the leave granted hereby is strictly limited as follows.

Plaintiff may, no later than October 2, 2026, file and serve a revised opposition separate statement (ROSS). Plaintiff is *not* granted leave to, and shall not, file any additional evidence of any kind. This prohibition includes evidence intended to authenticate or provide a foundation for evidence previously submitted.

The ROSS shall include *only* material facts that Plaintiff contends are relevant to her burden in the third stage of the *McDonnell Douglas* test as it applies to Plaintiff’s discrimination and retaliation claims. (See *McDonnell Douglas Corp. v. Green* (1973) 411 U.S. 792 [93 S. Ct. 1817, 36 L. Ed. 2d 668]; see also *Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 354-355.) To this end, the Court notes that, “to avoid summary judgment, an employee claiming discrimination must offer substantial evidence that the employer’s stated nondiscriminatory [and/or nonretaliatory] reason for the adverse action was untrue or pretextual, or evidence the employer acted with a discriminatory [and/or retaliatory] animus, or a combination of the two, such that a reasonable trier of fact could conclude the employer engaged in intentional discrimination [and/or retaliation].” (See *Horn v. Cushman & Wakefield Western* (1999) 72 Cal.App.4th 798, 806 807.)

Each additional material fact in the ROSS shall be sequentially numbered and set forth in its own row. Put differently, no numbered AMF shall consist of more than a single material fact. Plaintiff shall ensure that all cited evidence actually supports the AMF it is cited in support of. The ROSS shall also comply with the formatting requirements of Rules of Court, rule 3.1350, subdivisions (f) and (h). Finally, all citations to evidence set forth in the ROSS must include reference to the part of the Declaration of Brooke C. Bellah they are set forth in, and the pdf page number of that part, in addition to the document title, page, and line numbers. (See *id.* at subds. (f)(2) and (3).)